

# **Petition for Panel Rehearing**

## **Filing and requested relief**

A.R.M. petitions for panel rehearing of the September 9 judgment. Because a United States agency is a party, the forty-five-day period under Rule 40 ends October 24, 2025, and this petition is filed on that date. A.R.M. does not seek rehearing of the record-composition rulings or the denial of administrative-record status to the post-order proffer. The request is limited to clarification of the remand instructions.

The opinion vacates the aggregate-risk, acquiescence, and meaningful-consideration determinations while leaving factual evaluation to the agency. Petitioner asks the panel to clarify that the agency must address the identified interactions and evidence rather than repeat separate source conclusions. Counsel does not request a finding that torture is likely or an instruction compelling CAT protection. The requested clarification concerns the legal framework and explanatory duty only.

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## Record-composition component

The judgment recognizes restoration of the unchanged P-7 declaration and keeps T.R.'s post-order declaration outside the administrative record. A.R.M. agrees that those two results follow the documents' different provenance. P-7 was lodged, admitted, and acknowledged by the agency; T.R.'s declaration was created after the Board order. No rehearing is requested on either component.

This reservation matters because petitioner's request for clarification relies exclusively on AR1–AR238. The petition does not use PA1–PA8 to strengthen the CAT claim or ask the panel to reopen its supplementation ruling. By leaving record composition untouched, the panel can consider whether its remand language adequately directs aggregate and acquiescence analysis without revisiting which facts were before the agency.

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## Aggregate-risk component

The opinion correctly holds that the agency did not evaluate the supported pathways in combination. A.R.M. asks the panel to clarify that aggregation includes possible informational links, not merely addition of three independent probabilities. The asserted route involves Harbor League information, Unit Four interest, registry identification, and return-location data. Whether those links are credited remains for the agency.

Petitioner is concerned that the phrase “consider together” could be read as permitting the agency to repeat its separate discussions and add a conclusory sentence. Rehearing should state that the agency must analyze the supported interactions, explain which links it accepts or rejects, and assess the resulting total probability. That clarification would enforce Rodriguez-Arias without dictating the evidentiary weight or ultimate CAT result.

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## Acquiescence component

The opinion also vacates the acquiescence analysis because the agency emphasized formal safeguards without meaningfully addressing complaint routing, regional awareness, nonintervention, and the absence of an independent interview. A.R.M. asks the panel to clarify that actual knowledge and willful blindness are alternative forms of awareness and that breach of a duty to intervene must be evaluated after awareness is determined.

Petitioner does not ask the court to find that officials knew of future harm or breached a duty. The agency may credit formal prohibitions, hotlines, review desks, and discipline evidence. It must weigh those materials against the record of how A.R.M.'s complaint was routed and handled. Clarification would prevent the existence of formal rules from becoming a categorical answer to evidence about implementation.

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## **Meaningful-consideration component**

A.R.M. asks the panel to retain its holding that the court cannot supply an agency rationale. The routing code, complaint status, source map, and institutional-response evidence were offered for issues central to aggregation and acquiescence. If the agency discounts them, it should identify a factual, evidentiary, or legal reason that permits review. A silent record leaves the parties and reviewing court to speculate.

Rehearing is not sought merely because the Board's discussion was concise. Petitioner recognizes that an adjudicator need not mention every page. The requested clarification concerns the difference between omitting cumulative detail and omitting the evidence that connects the alleged pathways or bears directly on official awareness. The latter omission frustrates review even when the agency may lawfully reach the same ultimate result after remand.

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## Standard-of-review component

Section 1252(b)(4)(B) requires deference to agency fact findings unless any reasonable adjudicator would be compelled to conclude otherwise. A.R.M. does not challenge the opinion's statement of that standard and does not ask the panel to decide credibility, future probability, official awareness, or relocation. The petition seeks legal clarification precisely so those factual questions remain with the agency.

A requirement that the agency analyze supported links and central evidence does not lower the compelled-conclusion threshold. It identifies the reasoning necessary before the court can apply that threshold to an agency decision. Petitioner asks the panel to explain that remand corrects an analytical and explanatory defect, not an adverse factual finding. The agency remains free to make supported findings and reach a lawful result after applying the full CAT framework.

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## Effect on mandate

A timely Rule 40 petition changes the ordinary Rule 41 schedule. The mandate should not issue on October 31 while this petition remains unresolved. If rehearing is denied, Rule 41(b) ordinarily measures issuance from entry of the denial order, subject to a timely stay motion or another court order. If rehearing is granted or the judgment is amended, the later procedural consequences must follow the actual disposition entered.

A.R.M. states these effects so the clerk does not treat the unopposed forty-five-day expiration as the controlling event. The petition requests no separate stay beyond the consequence supplied by the rules and proposes no mandate date before the panel acts. Any party seeking additional relief must file the motion required by Rule 41 and establish its own grounds.

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## Conclusion and service

A.R.M. asks the panel to clarify the aggregate-risk, acquiescence, and meaningful-consideration instructions while leaving the seven judgment components and ultimate remand intact. The petition does not seek rehearing of P-7 correction, proffer exclusion, actual petition timing, or the refusal to make appellate factual findings. It requests no new evidence and relies on the existing briefs, opinion, judgment, authorities, and AR citations.

Counsel certifies electronic service on the institutional respondent on October 24, 2025. The petition contains the requested points of law and fact in the body rather than incorporating another submission. If the panel concludes that the opinion already provides the requested direction, A.R.M. asks that the denial order preserve the opinion unchanged and that any mandate date be calculated from the actual denial under Rule 41.